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10-101. "Municipality" defined. "Municipality," as used in this chapter and all acts amendatory thereto, unless otherwise expressed in such amendment, shall mean and include every corporation and quasi corporation empowered to issue bonds in payment of which taxes may be levied.

History: R.S. 1923, § 10-101; December 27.

Revisor's Note:

Source or Prior Law references are omitted under the sections of the general bond law of 1923 as the source of each particular section of the 1923 bond law is not definitely ascertainable.

Law Review and Bar Journal References:

Revision of statutes, Franklin Corrick, 6 J.B.A.K. 284 (1938).

"People Have the Power: The Power of the Petition," Robert W. Parnacott, 80 J.K.B.A. No. 3, 32 (2011).

Attorney General's Opinions:

Investment of funds received from industrial revenue bonds. 81-117.

City and county service programs for the elderly; tax levy, use of proceeds. 84-114.

Securities for public funds deposits in banks; revenue bonds. 84-127.

Refinancing construction accounts. 86-112.

CASE ANNOTATIONS

1. Disorganized school-district territory not liable for debts of district to which attached. *Hunziker v. School District*, 153 Kan. 102, 106, 109 P.2d 115.
2. Cited in holding county hospital bonds subject to limitations of K.S.A. 10-301. *State, ex rel., v. Robb*, 163 Kan. 502, 505, 183 P.2d 223.
3. Ordinance, notice of election and ballot must show statute under which bond election held. *Eastern Kansas Utilities, Inc., v. City of Paola*, 165 Kan. 558, 566, 567, 196 P.2d 199.
4. City of Horton within definition. *City of Horton v. Robb*, 173 Kan. 398, 400, 246 P.2d 253.
5. Section mentioned; municipalities subject to corporation commission jurisdiction under K.S.A. 10-1203 notwithstanding provisions of K.S.A. 66-104. *City of Wichita v. Kansas Corporation Commission*, 225 Kan. 524, 532, 592 P.2d 880.
6. "Municipalities" as defined by this section refers to City of Kansas City, not board of public utilities. *Board of Public Utilities v. City of Kansas City*, 227 Kan. 194, 198, 199, 605 P.2d 151.
7. Board of public utilities is not "municipal corporation" nor "quasi-municipal corporation" under this section. *Board of Public Utilities, Etc. v. City of Kansas City*, 496 F. Supp. 389, 393.
8. Cited; general improvement temporary notes (K.S.A. 12-6a14) governed by K.S.A. 10-131; interest income must set off expense applicable to specific project. *Mallon v. City of Emporia*, 11 Kan. App. 2d 494, 497, 498, 726 P.2d 1354 (1986).

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